

ORDER SHEET**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

W.P. No. 31827 of 2021

Muhammad Imran**Vs.****Full Bench NIRC & others.**

Sr. No. of Orders/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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24.05.2021

Mr. Mustansar Hayat, Advocate for the Petitioner.

The brief facts leading to the institution of this Constitutional Petition are that the Petitioner was an employee of Faysal Bank Limited (Respondents No. 3 to 5, hereinafter referred to as the "**Bank**") and was appointed as Officer Grade-III in the Bank on 30.08.2004. The Petitioner was terminated on 03.05.2013. Thereafter, he filed departmental appeal which was dismissed on 27.05.2013. Feeling aggrieved, the Petitioner instituted a Grievance Petition under Section 33 of the Industrial Relations Commission Act, 2012 (Act No. X of 2012) (**the "Act"**) praying therein that the termination order dated 03.05.2013 and 27.05.2013 be set aside and he be reinstated into service with all back benefits. The Grievance Petition was accepted by the Single Bench of National Industrial Relations Commission (**the "NIRC"**) on 05.03.2019. The Bank filed an appeal under Section 58 of the Act before the learned Full Bench of NIRC which was accepted vide impugned order dated 17.12.2020 (**the "Impugned Order"**).

2. The moot point for determination before the Single Bench and the Full Bench of the NIRC was whether the Petitioner is a 'workman' or not under Section 2(xxxiii) of the Act.

3. The learned counsel for the Petitioner was confronted as to how the Petitioner is a workman in the light of well-reasoned

judgment of the learned Full Bench of NIRC. He argued that in order to determine whether the Petitioner is a workman or not, the nature and scope of duties have to be looked into. The learned counsel relied upon the Power of Attorney dated 10.10.2008 (Exhibit R3) executed by the Bank in favour of the Petitioner and submitted that the Petitioner is a workman. He supported the order of the learned Single Bench and argued that the Full Bench has erroneously concluded that the Petitioner is not a workman in terms of clause 10 of the Power of Attorney.

4. Arguments heard. Record perused.

5. I have examined the order dated 05.03.2019 passed by learned Single Bench and the Impugned Order passed by learned Full Bench of NIRC. The controversy can be easily resolved by putting clause 12 on which the learned Single Bench has relied upon in juxta position with clause 10 of the Power of Attorney relied upon by the learned Full Bench of NIRC. For facility of reference both clause 10 as well as 12 are reproduced hereunder:-

Clause 10	Clause 12
"To commence, prosecute, continue and defend all actions, suits or legal proceedings whether civil, criminal or revenue including proceedings to procure or establish the bankruptcy or insolvency of any person or firm or liquidation or winding up of any company; to compromise or refer to arbitration any claims or disputes either in such suits or proceedings or otherwise; to appoint Solicitors, Advocates, Pleaders, Vakils and other legal agents; to make, sign verify, execute complaints, petitions, written statements, tabular	"PROVIDED ALWAYS THAT no declaratory act, no deeds, documents, bills, cheques of other writing shall be issued by and under the hand of the said Attorney-in-Fact UNLESS COUNTERSIGNED BY ANY OTHER officer of the Company under Group 'A' Powers of Attorney, and PROVIDED FURTHER

statements, vakalatnamas, warrants of attorney or any other papers expedient or necessary in the opinion of the Attorney to be made, signed, executed, verified, presented, presented or filed."	THAT any declaratory act or any such writing as aforesaid not so issued shall not be valid or binding."
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6. Admittedly, the Petitioner was engaged as an Officer Grade-III on 30.08.2004 and was officer Grade-I on the date of his termination. There is no denial that the Petitioner did not hold Power of Attorney and he was not officer Grade-I. The clause 10 of the Power of Attorney unequivocally confirms that the Petitioner was performing duties and functions of administrative nature which fell in the managerial and supervisory domain. Reliance on clause 12 by the Single Bench is misconceived since powers under the Power of Attorney are usually confined to primary and specific functions performed by an employee and therefore, at times prohibit certain functions which do not fall within the scope of their assignment. It is a cardinal and universally accepted principle of interpretation of documents that a document must be read as a whole to ascertain the true intent and purpose of the document. Therefore, the correct approach would be to read the said Power of Attorney as a whole and give more weight to tasks entrusted upon the employee, that is to say, what he can do, rather, than what he is prohibited to do. The said Power of Attorney read as a whole confirms that the assignments entrusted to the Petitioner were that of managerial in nature and character. The clauses 2 to 11 of the Power of Attorney relate to positive powers conferred upon the Petitioner. Functions such as to purchase, negotiate, renew or process bills of exchange, to accept deposits, to endorse bills of lading, to enforce payments, delivery and transfer of all dues and securities, to vote and take part in the election of assignees, trustees and liquidators on behalf of the Bank, to operate accounts with the State Bank of Pakistan

and its subsidiaries, to sign and execute all instruments of transfer in relation to share of joint stock companies, to commence and defend all legal actions, etc. are some of the examples that the Petitioner was entrusted with. Such important functions are entrusted only to a person holding managerial post and not to a workman as defined in the Act. Clause 12 is the only prohibitory clause putting restrictions upon the Petitioner regarding assignments that he cannot do singly but can do in collaboration with another officer. Therefore, the learned Single Bench of NIRC has completely misread clause 12 in isolation to conclude that the Petitioner is a workman.

7. The learned Full Bench of the NIRC had correctly relied upon the judgment of August Supreme Court of Pakistan in this behalf in case titled, National Bank of Pakistan and another vs. Anwar Shah & others, **2015 SCMR 434**, in which Officers Grade-I to III of the National Bank of Pakistan were held to be not workmen. In case titled, Habilb Bank Limited vs. Gulzar Khan and others, **2019 SCMR 946**, it was also held that description of work and assigned tasks of an employee are relevant to determine the status of a workman or otherwise.

8. In view of the above, the Petitioner is held not to be a workman and as such, was not entitled to invoke the jurisdiction of NIRC and the Impugned Order is in accordance with law and pronouncements of the August Supreme Court of Pakistan. The Impugned Order, therefore, does not suffer from any illegality or unconstitutionality that requires indulgence of this Court to exercise discretionary and extraordinary constitutional jurisdiction in this case.

This Petition is dismissed in limine.

(Abid Hussain Channa)
Judge

Approved for reporting.

Jamil